IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal in terms of Section 320 of the Code of Criminal Procedure Act No. 15 of 1979.

T. L. Jayasinghe
Inspector of Police,
Police Station,
Monaralaga.

Complainant

CA HCC (PHC) 00172/2022
High Court of Monaragala
HC (Revision) 43/22

Vs.

1. Arumugam Antan Muthukumarana
   Ariyasiri Morters waththa,
   Galwala Road,
   Kumbukkana.

2. Mohamad Kasim Mohomad Nizam
   11 Kanuwa,
   Monaragala Road,
   Buttala.

Accused

Ekanayaka Mudiyanselage Anuradha
Amila Ekanayake,
Pangolla,
Dombagahawela,
Monaragala.

Animal Carer

B. Wijekumarathunga
R/09, Thora Ara,
Athiliyawewa.

Animal Owner -Appellant

AND BETWEEN

B. Wijekumarathunga
R/09,
Thora Ara,
Athiliyawewa.

Animal Owner -Applicant-Petitioner

Vs,

1. Arumugam Antan Muthukumarana
   Ariyasiri Morters waththa,
   Galwala Road,
   Kumbukkana.

2. Mohamad Kasim Mohomad Nizam
   11 Kanuwa,
   Monaragala road,
   Buttala.

Accused- Respondents

3. Ekanayaka Mudiyanselage Anuradha Amila
   Ekanayake,
   Pangolla,
   Dombagahawela,
   Monaragala.

Animal Carer- Respondent-Respondent

4. T. L. Jayasinghe,
   Inspector of Police,
   Police Station,
   Monaralaga.

Complainant- Respondent

5. The Attorney General,
   Attorney General's Depatment,
   Colombo 12.

Joint Respondent

AND NOW BETWEEN

B. Wijekumarathunga
R/09, Thora Ara,
Athiliyawewa.

Animal Owner -Applicant
-Petitioner-Appellant

Vs,

1. Arumugam Antan Muthukumarana
   Ariyasiri Morters waththa,
   Galwala Road,
   Kumbukkana.

2. Mohamad Kasim Mohomad Nizam
   11 Kanuwa,
   Monaragala road,
   Buttala.

Accused-Respondents- Respondents

3. Ekanayaka Mudiyanselage Anuradha Amila
   Ekanayake,
   Pangolla,
   Dombagahawela,
   Monaragala.

Animal Carer- Respondent-Respondent

4. T. L. Jayasinghe
   Inspector of Police,
   Police Station,
   Monaralaga.

Complainant- Respondent-Respondent

5. The Attorney General,
   Attorney General's Depatment,
   Colombo 12.

Joint Respondent-Respondent

Before: **B. Sasi Mahendran. J,**
Amal Ranaraja. J,

Counsel: Udaya Sri Keerthiwardena for the Petitioner-Appellant

Wishwa Wijesooriya, S.G. for the Respondents

Argued on: 28.01.2026

Judgment on: 18.02.2026

Judgment

Amal Ranaraja. J,

1. The Monaragala police have submitted a report together with seized evidence and summarised statements to the Monaragala Magistrates Court, in Case No. BR 1292/2022. This submission of a report has pertained to an incident involved the arrests of suspects for allegedly committing offences under the Animals Act No.29 of 1958 (as amended).

2. Among the seized evidence had been cattle. The learned Magistrate has issued an interim order directing that the cattle be temporarily consigned to the custody of an animal care centre approved by the line minister or a person actively involved in animal welfare, pending the final determination of the case.

3. The alleged owner of the cattle aggrieved by the interim order issued by the learned Magistrate on June 24th, 2022, has filed a revision application with the High Court in Monaragala seeking to have the order set aside and the cattle released to him.

4. Upon the consideration of the revision application the learned High Court Judge has dismissed it in the first instance and refused to issue notice to the respondents named therein. Aggrieved by this order the purported owner who was also the petitioner in the revision application has preferred the instant appeal to this court.

5. During the argument of the matter the learned Counsel for the appellant contended that the provisions of Chapter XXXVIII of the Code of Criminal Procedure Act no 15 of 1979 are applicable to the situation at hand specifically concerning the disposal of property that constitutes the subject matter of the offence. Consequently, that the learned Magistrate erred in law and her disputed order cannot stand.

6. The learned State Counsel has directed the court's attention to section 3AA (1) of the Animals Act, a provision introduced by Amendment Act no. 10 of 2009. He has thereafter asserted that the application of such section's provisions is paramount operating not withstanding anything to the contrary in any other written law where an offence relating to the Animals Act is committed. Accordingly, he has further contended that the disputed order must be upheld.

> *"Section 3AA (1) of the Animals Act No.29 of 1958 (as amended) is as follows;*
>
> > *3AA. (1) Notwithstanding anything to the contrary in any other written law, where an offence in relation to an animal is committed and where such offence is brought to the notice of the Magistrate having competent jurisdiction, the Magistrate may, pending the determination of the case, make an interim Order to the effect that the animal against whom the offence has been committed. (a) be handed into the custody of an Animal Care Centre approved by the Minister by Order published in the Gazette; (b) be handed over to any non-governmental organization whose primary objective is concerned with the*

welfare of animals; or (c) be handed over to the custody of any person whom the court is satisfied, is actively engaged in caring for animals."

7. This provision enables the Magistrate pending the final determination of a case to issue an interim order directing the animal/animals against which the alleged offence has been committed to be;

    i. Handed into an animal care centre approved by the relevant minister,
    ii. Handover to any non-governmental organisation whose primary objective is animal welfare or,
    iii. Handover to the custody of any person whom the court is satisfied is actively engaged in caring for animals.

8. Further, the provision in section 3AA (1) of the Animals Act takes precedence over all conflicting laws. In essence when a statute states that it applies *"notwithstanding any other law"*, it asserts its supremacy over any conflicting laws that may exist. This phrase serves to create clear boundaries, ensuring that the new provision will take precedence even if another law might suggest otherwise. The use of *"notwithstanding"* underscores the principal of legal hierarchy. In instances where laws might contradict each other this term acts as a decisive mechanism allowing one law to override others.

9. In light of these circumstances as the provision in Section 3AA (1) has been enacted subsequently, the appellant's assertion that the provisions outlined in chapter XXXVIII of the Code of Criminal Procedure Act would apply to the matter at hand is unpersuasive and ultimately fails to hold.

10. In delivering the disputed order, the learned magistrate has referred to section 3AA (1) of the Animals Act. She has carefully examined the provisions outlined in this section and applied the relevant facts to the law.

Upon her analysis she has concluded that the welfare of the cattle was paramount and issues the disputed order preliminarily for the benefit of the animals involved.

11. Furthermore, it is important to note that the disputed order is, by its nature, a temporary measure. This provides the appellant with a significant opportunity to establish his case during the inquiry conducted as per the provisions in section 3AA(3) of the Act that will follow the trial to assert his claim to the cattle. Considering these points, it is evident that the disputed order issued by the learned Magistrate is legally sound and justified.

12. Moreover, the learned High Court Judge has taken the necessary time to examine the matters discussed above. After due consideration he has determined that there are no exceptional circumstances warranting the revision application that was forwarded to the High Court, which seeks to challenge the relevant order made by the learned Magistrate.

13. In *Fattal vs. Wallbrook Trustee (Jersey Ltd)* CA [2008] EWLA CIV 427, the Court of Appeal of England and Wales has observed the following;

> *"An appellate court should not interfere with case management decisions by a judge who had applied the correct principles and who had taken into account matters which should be taken into account and left out of account matters which are irrelevant."*

14. In those circumstances I am not inclined to interfere with an order of the learned Magistrate dated June 24th, 2022, or with that of the learned High Court Judge dated September 28th, 2022, and affirm the same.

15. I dismiss the appeal
    I make no order regarding costs

Appeal dismissed.

16. The Registrar of this Court is directed to send this judgement to the Magistrates Court in Monaragala for information/compliance together with the original case record if it has been forwarded to this court.

Judge of the Court of Appeal

B. Sasi Mahendran, J.

Judge of the Court of Appeal